

September 23, 2026

The Governor of Alabama
Alabama State Capitol
Montgomery, AL 36130

Dear Governor Ivey,

As the leader of an organization that protects Alabamians with intellectual disability, I respectfully request that you grant clemency to Mark Jenkins. Your work on behalf of people with disabilities is a critical part of your legacy, and I hope you will cement that legacy by commuting the death sentence of someone who has lived with intellectual disability his whole life.

Intellectual disability is a serious neurodevelopmental condition, and Mark has struggled with significant cognitive and adaptive impairments since his early childhood. Elementary school teachers remarked that Mark tried hard but struggled so much that grading him was simply unfair. He was reading at just a third-grade level when he was in seventh grade—in fact, he did not learn how to read until his twenties. His cognitive impairments were compounded by serious deficits in his ability to navigate the demands of everyday life. Growing up, Mark was bullied incessantly, both at home and at school, for his unkempt and unhygienic appearance. A social services report from his early teens referred to him as “lack[ing] emotional maturity,” and another noted that he had “significant areas of concern when it came to many basic social emotional functioning skills.” School records reported that he had “poor functional self-help skills” and was “unable to function independently.”

Though intellectual disability is serious, people with the condition can cope and even thrive with support and stability. Mark, however, received neither as a child. His childhood was racked by chaos. When Mark struggled, his parents punished him with physical violence and emotional abuse, leading him to run away from home starting as early as age 11. And, because his parents kept getting evicted, he did not stay in one school district long enough to get proper intervention.

Mark’s first stable living environment was prison. The structures and stability of the Alabama Department of Corrections have been pivotal. With this support, Mark has been able to grow in his faith, work to atone for his crime, and—defying stereotypes about people with disabilities—perform tasks for correctional officers and shine shoes.

Even though Mark has been diagnosed as intellectually disabled, he has never been given the opportunity to prove his disability in court. I ask that you step in and do what the courts have not done, which is to recognize the injustice in executing a man with a grievous intellectual disability. I ask that you commute Mark’s sentence to life in prison without parole.

Sincerely,



Tim Cooper
Executive Director, The Arc of Alabama